

In Re: Section 6A of the Citizenship Act, 1955 (Assam Accord)

Citation: (2025) 2 SCC 1 | Court: Supreme Court | Year: 2025

Coram: 5-Judge Constitution Bench (4:1 Majority) | Subject: Constitutional Law | Provisions: Citizenship Act Sec 6A, Articles 11 & 14

I. EXECUTIVE SUMMARY & CASE GLIMPSE

Section 6A of the Citizenship Act, 1955, giving statutory effect to the Assam Accord with a cut-off date of 25th March 1971 for citizenship, is constitutionally valid. Parliament possesses plenary competence under Article 11 to regulate citizenship criteria on rational geographical and historical classifications.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding Citizenship Act Sec 6A, Articles 11 & 14. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€ Whether the impugned state actions or commercial conduct conformed to Citizenship Act Sec 6A, Articles 11 & 14.
- â€ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

The legislative classification underlying Section 6A satisfies the twin tests of Article 14: an intelligible differentia based on the historic influx during the 1971 Bangladesh Liberation War, and a direct rational nexus with the objective of restoring social peace in the border state of Assam.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€ Upheld the statutory validity of the Assam Accord cut-off date (25 March 1971).
- â€ Confirmed Parliament's untrammelled power under Article 11 over citizenship laws.
- â€ Rejected Article 29 cultural rights challenge against state-specific citizenship criteria.